Safe Drinking Water Act, 2002

ONTARIO REGULATION 169/03

ONTARIO DRINKING WATER QUALITY STANDARDS

CURRENT Consolidation period: January 1, 2020 - e-Laws currency date (March 4, 2026)

Last amendment: 457/16.

This is the English version of a bilingual regulation.

Legislative History

Standards

1. The standards set out in Schedules 1, 2 and 3 are prescribed as drinking water quality standards for the purposes of the Act. O. Reg. 169/03, s. 1.

Deemed compliance

2. (1) A person who, pursuant to section 10 of the Act or otherwise, has an obligation to ensure that water meets a standard set out in Schedule 1, 2 or 3 shall be deemed not to have contravened the obligation if, in circumstances where the water does not meet the standard, the person immediately contacts the medical officer of health and takes such other steps as are directed by the medical officer of health. O. Reg. 169/03, s. 2 (1).

(2) Despite subsection (1), the owner or operating authority of a drinking water system that provides water that does not meet a standard set out in Schedule 1, 2 or 3 shall be deemed not to have contravened paragraph 1 of subsection 11 (1) of the Act only if the owner or operating authority ensures that the appropriate corrective action is taken under Schedule 17 or 18 to Ontario Regulation 170/03 (Drinking Water Systems). O. Reg. 169/03, s. 2 (2); O. Reg. 255/05, s. 1; O. Reg. 327/08, s. 1.

3. Omitted (provides for coming into force of provisions of the English version of this Regulation). O. Reg. 169/03, s. 3.

SCHEDULE 1
MICROBIOLOGICAL STANDARDS

Item	Microbiological Parameter	Standard (expressed as a maximum)
1.	*Escherichia coli* (E. coli)	Not detectable
2.	Revoked: O. Reg. 248/06, s. 1.	
3.	Total coliforms	Not detectable
4.	Revoked: O. Reg. 248/06, s. 1.	
5.	Revoked: O. Reg. 248/06, s. 1.	

O. Reg. 169/03, Sched. 1; O. Reg. 248/06, s. 1.

SCHEDULE 2
CHEMICAL STANDARDS

Item	Chemical Parameter	Standard (expressed as a maximum concentration in milligrams per litre)
1.	Alachlor	0.005
2.	Antimony	0.006
3.	Arsenic	0.01
4.	Atrazine + N-dealkylated metabolites	0.005
5.	Azinphos-methyl	0.02
6.	Barium	1.0
7.	Benzene	0.001
8.	Benzo(a)pyrene	0.00001
9.	Boron	5.0
10.	Bromate	0.01
11.	Bromoxynil	0.005
12.	Cadmium	0.005
13.	Carbaryl	0.09
14.	Carbofuran	0.09
15.	Carbon Tetrachloride	0.002
16.	Chloramines	3.0

16.1	Chlorate	1.0
16.2	Chlorite	1.0
17.	Chlorpyrifos	0.09
18.	Chromium	0.05
19.	Cyanide	0.2
20.	Diazinon	0.02
21.	Dicamba	0.12
22.	1,2-Dichlorobenzene	0.2
23.	1,4-Dichlorobenzene	0.005
24.	1,2-Dichloroethane	0.005
25.	1,1-Dichloroethylene (vinylidene chloride)	0.014
26.	Dichloromethane	0.05
27.	2,4-Dichlorophenol	0.9
28.	2,4-Dichlorophenoxy acetic acid (2,4-D)	0.1
29.	Diclofop-methyl	0.009
30.	Dimethoate	0.02
31.	Dioxin and Furan	0.000000015 (Total toxic equivalents when compared with 2,3,7,8-TCDD (tetrachlorodibenzo-p-dioxin))

32.	Diquat	0.07
33.	Diuron	0.15
33.1	Ethylbenzene	0.14
34.	Fluoride	1.5
35.	Glyphosate	0.28
35.1	Haloacetic acids	0.08 (expressed as a running annual average of quarterly results)
36.	Lead	0.010
37.	Malathion	0.19
38.	Mercury	0.001
38.1	2-Methyl-4-chlorophenoxyacetic acid	0.1
39.	Metolachlor	0.05
40.	Metribuzin	0.08
41.	Microcystin LR	0.0015
42.	Monochlorobenzene	0.08
43.	Nitrate (as nitrogen)	10.0
44.	Nitrite (as nitrogen)	1.0
45.	Revoked: O. Reg. 457/16, s. 1 (4).	
46.	Nitrilotriacetic Acid (NTA)	0.4

47.	N-Nitrosodimethylamine (NDMA)	0.000009
48.	Paraquat	0.01
49.	Pentachlorophenol	0.06
50.	Phorate	0.002
51.	Picloram	0.19
52.	Polychlorinated Biphenyls (PCB)	0.003
53.	Prometryne	0.001
54.	Selenium	0.05
55.	Simazine	0.01
56.	Terbufos	0.001
57.	Tetrachloroethylene (perchloroethylene)	0.01
58.	2,3,4,6-Tetrachlorophenol	0.1
58.1	Toluene	0.06
59.	Triallate	0.23
60.	Trichloroethylene	0.005
61.	2,4,6-Trichlorophenol	0.005
62.	Trifluralin	0.045
63.	Trihalomethanes	0.100 (expressed as a running annual average of quarterly results)

64.	Uranium	0.02
65.	Vinyl Chloride	0.001
66.	Xylenes	0.09

O. Reg. 373/15, s. 1; O. Reg. 457/16, s. 1.

SCHEDULE 3

RADIOLOGICAL STANDARDS

TABLE 1

NATURAL RADIONUCLIDES

Item	Radiological Parameter	Standard (expressed as a maximum in becquerels per litre)
1.	Beryllium-7	4000.0
2.	Bismuth -210	70.0
3.	Lead-210	0.1
4.	Polonium-210	0.2
5.	Radium-224	2.0
6.	Radium-226	0.6
7.	Radium-228	0.5
8.	Thorium-228	2.0
9.	Thorium-230	0.4
10.	Thorium-232	0.1
11.	Thorium-234	20.0
12.	Uranium-234	4.0

13.	Uranium-235	4.0
14.	Uranium-238	4.0

TABLE 2
ARTIFICIAL RADIONUCLIDES

Item	Radiological Parameter	Standard (expressed as a maximum in becquerels per litre)
1.	Americium-241	0.2
2.	Antimony-122	50.0
3.	Antimony-124	40.0
4.	Antimony-125	100.0
5.	Barium-140	40.0
6.	Bromine-82	300.0
7.	Calcium-45	200.0
8.	Calcium-47	60.0
9.	Carbon-14	200.0
10.	Cerium-141	100.0
11.	Cerium-144	20.0
12.	Cesium-131	2000.0
13.	Cesium-134	7.0
14.	Cesium-136	50.0
15.	Cesium-137	10.0

16.	Chromium-51	3000.0
17.	Cobalt-57	40.0
18.	Cobalt-58	20.0
19.	Cobalt-60	2.0
20.	Gallium-67	500.0
21.	Gold-198	90.0
22.	Indium-111	400.0
23.	Iodine-125	10.0
24.	Iodine-129	1.0
25.	Iodine-131	6.0
26.	Iron-55	300.0
27.	Iron-59	40.0
28.	Manganese-54	200.0
29.	Mercury-197	400.0
30.	Mercury-203	80.0
31.	Molybdenum-99	70.0
32.	Neptunium-239	100.0
33.	Niobium-95	200.0
34.	Phosphorus-32	50.0
35.	Plutonium-238	0.3

36.	Plutonium-239	0.2
37.	Plutonium-240	0.2
38.	Plutonium-241	10.0
39.	Rhodium-105	300.0
40.	Rubidium-81	3000.0
41.	Rubidium-86	50.0
42.	Ruthenium-103	100.0
43.	Ruthenium-106	10.0
44.	Selenium-75	70.0
45.	Silver-108m	70.0
46.	Silver-110m	50.0
47.	Silver-111	70.0
48.	Sodium-22	50.0
49.	Strontium-85	300.0
50.	Strontium-89	40.0
51.	Strontium-90	5.0
52.	Sulphur-35	500.0
53.	Technetium-99	200.0
54.	Technetium-99m	7000.0
55.	Tellurium-129m	40.0

56.	Tellurium-131m	40.0
57.	Tellurium-132	40.0
58.	Thallium-201	2000.0
59.	Tritium	7000.0
60.	Ytterbium-169	100.0
61.	Yttrium-90	30.0
62.	Yttrium-91	30.0
63.	Zinc-65	40.0
64.	Zirconium-95	100.0

Notes:

Radionuclide concentrations that exceed the standard may be tolerated for a short period, as long as the annual average concentrations remain below the standard and the restriction (see immediately below) for multiple radionuclides is met.

Restriction for multiple radionuclides: Based on International Commission on Radiological Protection (ICRP) Publication 26, if two or more radionuclides are present, the sum of the quotients of the observed concentration in becquerels per litre divided by the respective standard in becquerels per litre for each of the radionuclides detected must be less than or equal to one.

O. Reg. 457/16, s. 2.